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|    |                                                       | <p>prejudice the opposing party in the proceeding.” (<i>Sundholm v. Hollywood Foreign Press Assn.</i> (2024) 99 Cal.App.5th 1330, 1334.)</p> <p>Defendant failed to present any evidence that Plaintiff’s counsel received any confidential information (let alone attorney-client privileged information) that would prejudice Defendant in this litigation. Defendant fails to explain in what capacity Arian Eghbali provided “professional assistance” but notably does not contend it was legal assistance or representation. Defendant also does not explain how employee payroll information and internal operational information could be used adversely against him in this litigation. Moreover, Defendant relies entirely on speculation. There is no evidence Plaintiff’s counsel even received any confidential information. Defendant has not shown grounds for disqualification. The motion to disqualify is therefore <b>DENIED</b>.</p> <p>Counsel for Plaintiff shall give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| 12 | Karakalos v. Colonial Family Funeral Care etc. et al. | <p>Before the Court at present are the Demurrer and Motion to Strike filed on 3/23/26 by Defendants Colonial Family Funeral Care dba Chapman Funeral Homes and Mary J. Harmon, (“Defendants”), as to the Second Amended Complaint (“SAC”) filed on 2/17/26 by Plaintiff Mary Karakalos (“Plaintiff”).</p> <p><b><u>The Demurrer:</u></b> The Demurrer is directed to the Fourth, Fifth, Sixth, Seventh and Eighth Causes of Action (each a “COA”) in the SAC. The Demurrer as to COA 4 is <b>OVERRULED</b>; the Demurrer as to COAs 5-8 is <b>SUSTAINED, without leave to amend</b>.</p> <p>COA 4 now attempts to assert a claim for “Interference With Right to Possession and Control of Human Remains,” which alleges intentional conduct and is thus distinct from the claims in COAs 1 and 2. The Demurrer as to COA 4 is therefore <b>OVERRULED</b>. However, the additional COAs asserted as COAs 5-8, which were added without leave to do so, appear to effectively duplicate COA 4. None of those COAs state a cognizable claim distinct from COA 4. The Motion is therefore <b>GRANTED</b> as to COAs 5-8, without further leave to amend.</p> <p><b><u>The Motion to Strike:</u></b> In light of the ruling on the Demurrer, the Motion to Strike as to COAs 5-8 is <b>MOOT</b>.</p> <p>The Motion is otherwise <b>DENIED</b>. The allegations presented, in promising to provide but then intentionally failing to actually provide the remains at issue to Plaintiff in a timely manner, are sufficient to support the request for punitive damages in ¶ 42 and ¶ 51, for pleading purposes.</p> <p>Defendants are to file their Answer to the SAC within 10 days</p> <p>Case Management Conference is <b>CONTINUED</b> to October 30, 2026, at 9:30 a.m.</p> <p>Plaintiff to give notice of these rulings.</p> |